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EU SETTLEMENT SCHEME FAMILY PERMIT



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EU SETTLEMENT SCHEME FAMILY PERMIT

The EU Settlement Scheme Family Permit is available to non-EEA citizens who wish to travel to and enter the UK in order to join or accompany a close family member who is a relevant EEA citizen.

EU Settlement Scheme Family Permits are also available to non-EEA citizens who wish to join or accompany a close family member who is an eligible person of Northern Ireland or an eligible naturalised British citizen, or family members of British citizens who have lived with that British citizen in another EU country prior to 31 December 2020.

Requirements for an EU Settlement Scheme Family Permit

In order to qualify for an EU Settlement Scheme Family Permit you will need to satisfy UK Visas & Immigration that:

- You are the joining family member of a relevant EEA citizen (an EEA citizen who holds either Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) or Pre-Settled Status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-pre-settled-status/>), or has applied and is waiting for a decision);
- You will be accompanying the EEA citizen to the UK or joining them in the UK within 6 months of the date of application;
- Your family relationship began prior to 31 December 2020.

Family members of British citizens (Surinder Singh and Zambrano applications)

On 8 August 2023, the EUSS Family Permit closed to new applications by family members of a qualifying British citizen on their return to the UK having exercised free movement rights in the EEA or Switzerland (known as the 'Surinder Singh' route) and to primary carers of a British citizen (known as the 'Zambrano' route). Applicants considering these routes now need to meet the **family Immigration Rules** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/>) applicable to others instead.

The Surinder Singh and Zambrano routes remain open to those who are already on them. Those granted an EUSS Family Permit on the basis of a Surinder Singh or Zambrano application made by 8 August 2023 are also able to come to the UK and apply to the EU Settlement Scheme.

To discuss your EU Settlement Scheme Family Permit application with one of our immigration barristers, contact our EU Settlement Scheme Lawyers on 0203 617 9173 or complete our enquiry form below.

Family Members of Relevant EEA Citizens

The following family members of relevant EEA citizens may be eligible to apply for an EUSS Family Permit:

- Spouse of a relevant EEA citizen;
- Civil partner of a relevant EEA citizen;
- Durable partner of a relevant EEA citizen;
- Child (or grandchild or great-grandchild) of a relevant EEA citizen or of their spouse or civil partner;
- Dependent parent (or grandparent or great-grandparent) of the relevant EEA citizen or of their spouse or civil partner,

You will need to demonstrate that your relationship existed prior to 31 December 2020.

Relevant EEA Citizen

The following persons are considered relevant EEA citizens:

- EEA or Swiss nationals who have been granted 'pre-settled' status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-pre-settled-status/>) or 'settled' status (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>) under the EU Settlement Scheme, or who have made an application and are awaiting the outcome;

- (7) Eligible persons of Northern Ireland (persons who have British, Irish or dual British and Irish citizenship, were born in Northern Ireland and have at least one parent who held British, Irish or dual citizenship (or without any restriction on their period of residence) at the time of their birth) who meet the criteria for 'pre-settled' or 'settled' status under the EU Settlement Scheme (even though they cannot apply);
- British citizens who also have EEA or Swiss citizenship and who lived in the UK as an EEA or Swiss citizen before gaining British citizenship.

EU Settlement Scheme Family Permit or EEA Family Permit?

The EEA Family Permit route is now closed and new applications cannot be submitted. Those who are eligible should instead submit applications for EUSS Family Permits.

Pending applications and appeals for EEA Family Permits which were submitted prior to 31 December 2020 should continue to be considered (<https://immigrationbarrister.co.uk/the-status-of-eu-settlement-scheme-applicants-after-30-june-2021/>) under The Immigration and Social Security Co-ordination (EU Withdrawal) Act 2020 (Consequential, Saving, Transitional and Transitory Provisions) (EU Exit) Regulations 2020 (<https://www.legislation.gov.uk/uksi/2020/1309/contents>).

Applying for an EU Settlement Scheme Family Permit

Applications for an EU Settlement Scheme Family Permit can only be made from outside the UK.

- **Updated Guidance on Late EU Settlement Scheme Applications**
(<https://immigrationbarrister.co.uk/updated-guidance-on-late-eu-settlement-scheme-applications/>)
- **Update on EU Settlement Scheme Deadlines and Late Applications**
(<https://immigrationbarrister.co.uk/update-on-eu-settlement-scheme-deadlines-and-late-applications/>)
- **Avoiding Delays in EU Settlement Scheme Applications**
(<https://immigrationbarrister.co.uk/avoiding-delays-in-eu-settlement-scheme-applications/>)
- **The Status of EU Settlement Scheme Applicants After 30 June 2021**
(<https://immigrationbarrister.co.uk/the-status-of-eu-settlement-scheme-applicants-after-30-june-2021/>)

Application Fee for an EU Settlement Scheme Family Permit

The Home Office does not charge an application fee for an EU Settlement Scheme Family Permit.

Applicants for EU Settlement Scheme Family Permits are also not required to pay the Immigration Health Charge.

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Validity period of an EU Settlement Scheme Family Permit

Your EU Settlement Scheme family permit will be valid for 4 months if you are arriving after 01 April 2021.

Staying On in the UK

If you wish to stay in the UK beyond the validity period of your EU Settlement Scheme Family Permit then you will need to apply to the EU Settlement Scheme (<https://immigrationbarrister.co.uk/personal-immigration/eea-nationals-family/eu-settlement-scheme-settled-status/>).

The deadline for applying to the EU Settlement Scheme was 30 June 2021, the end of the 'Grace Period' (see above for further information about late applications). However, joining family members arriving after 01 April 2021 can apply within 3 months of arrival (and prior to the expiry of their family permit), or show reasonable grounds for not applying within this period.

How Our Immigration Barristers Can Help

Our immigration barristers regularly assist family members of EEA nationals to relocate to, and settle in, the UK, including via the EU Settlement Scheme Family Permit route.

Whether you require expert advice on the requirements for an EU Settlement Scheme Family Permit, an independent assessment of your prospects of qualifying for an EU Settlement Scheme Family Permit or professional assistance with preparing an EU Settlement Scheme Family Permit application or appeal, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to family members of EEA nationals as part of a professional and friendly service

WE CAN ALSO ASSIST WITH

Applications for EU Settlement Scheme Pre-Settled Status



Applications for EU Settlement Scheme Settled Status



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Visiting the UK From Europe? EU, EEA and Swiss Nationals Now Need a UK ETA

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By Paul Richmond - Managing Partner

02 Apr 2025

In This Article 1. What Is the UK ETA and Who Needs One? 2. The UK's Shift to Pre-Travel Authorisation 3. When Should You Apply for a UK ETA? 4. How to Apply for an ETA to Visit the UK 5. Duration and Validity...

(https://immigrationbarrister.co.uk/visiting-the-uk-from-europe-eu-eea-and-swiss-nationals-now-need-a-uk-eta/)

Electronic Travel Authorisation (ETA) Requirement for European Visitors to the UK from 2 April 2025

(https://immigrationbarrister.co.uk/electronic-travel-authorisation-eta-requirement-for-european-visitors-to-the-uk-from-2-april-2025/)

By Paul Richmond - Managing Partner

14 Feb 2025

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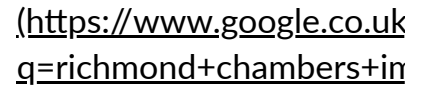
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